

as a result of this reclassification or how he was paid thereafter. (See, Complaint, generally.) Therefore, Plaintiff cannot defeat summary judgment based on this theory. (*Howard, supra*, 203 Cal.App.4th at 421, 423; *Hutton, supra*, 213 Cal.App.4th at 493.) Furthermore, Plaintiff presents no evidence to support this theory, only conclusory arguments. (*Rochlis, supra*, 19 Cal.App.4th at 219 [claims and theories not supported by admissible evidence do not raise triable issues of fact].)

5th Cause of Action - Violation of Bus. & Prof. Code § 17200

In addition to the claims for failure to provide overtime wages, rest and meal breaks, and accurate wage statements, Plaintiff asserts a cause of action for violation of Bus. & Prof. Code § 17200 based on the same alleged Labor Code violations. Bus. & Prof. Code § 17200 prohibits any business act or practice that is unlawful, unfair, or fraudulent. An “unfair” practice occurs “when that practice offends an established public policy or when the practice is immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers.” (*Moran v. Prime Healthcare Mgmt., Inc.* (2016) 3 Cal.App.5th 1131, 1150 [citation and internal quotation marks omitted].) Under the unlawful prong, the UCL borrows violations of other laws and treats them as unlawful business practices that are independently actionable under the UCL. (*Smith v. State Farm* (2001) 93 Cal.App.4th 700, 718.) To satisfy the fraudulent prong of the UCL, the plaintiff must show that the business practice is likely to deceive the public. (*Klein v. Earth Elements* (1997) 59 Cal.App.4th 965.) A cause of action for violating this statute “borrows” actionable conduct and makes it independently actionable under the unfair competition law. (*Smith v. State Farm* (2001) 93 Cal.App.4th 700, 718.) Since Defendants have established that Plaintiff’s Labor Code claims fail as a matter of law, Plaintiff has not alleged any unlawful conduct supporting this cause of action. (*Smith, supra*, 93 Cal.App.4th at 718.)

6.

CASE #	CASE NAME	HEARING NAME
CVPS2604217	MADRIGAL VS DELACRUZ	DEMURRER ON COMPLAINT OF ENRIQUE MADRIGAL BY AIDEN RAZIEL DELACRUZ

Tentative Ruling: Sustained.

Sustained as to 3rd cause of action. Plaintiff granted leave to amend, one last and additional time, within 10 days of this order becoming final. If Plaintiff does not file a 1st Amended Complaint, moving Defendant is to file their answer within 20 days to the remaining causes of action on the operative complaint.

Moving Defendant to provide notice pursuant to CCP 1019.5.

Plaintiff Enrique Madrigal brings this personal injury action arising out of a car accident on 10/17/25 at Madison St. and Miles Ave. in Indio. Plaintiff alleges Defendant Aiden Raziel Delacruz rear ended him, and admitted to being intoxicated. The complaint, filed 5/13/26, asserts: (1) motor vehicle; (2) general negligence; and (3) intentional tort (intentional infliction of emotional distress).

Defendant demurs to the 3rd cause of action for failure to state facts sufficient. Defendant argues that he and Plaintiff are strangers and occupied the roadway at the same time. There are no allegations that would support any intent to cause emotional distress. He also argues that Plaintiff does not allege severe emotional distress. Defendant also moves to strike punitive damages, contending it does not meet the standard of *Taylor* or *Dawes*.

In opposition, Plaintiff contends reckless disregard of the probability of causing emotional distress is sufficient for the claim, and that he has sufficiently pled the intent. Alternatively, he requests leave to amend.

Demurrer

A demurrer tests the legal sufficiency of the pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*)

The elements of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.) Conduct must be "so extreme as to exceed all bounds of that usually tolerated in a civilized society." (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1259.)

The first issue is that Plaintiff does not plead facts demonstrating extreme and emotional distress. "Only emotional distress of 'such substantial quantity or enduring quality' that an individual in civilized society should not be expected to endure it constitutes severe emotional distress." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) Facts regarding the nature, extent or duration of the alleged emotional distress should be pled in the complaint to support severe emotional distress. (*Ibid.*)

The second issue is intent. "It is not enough that the conduct be intentional and outrageous. It must be conduct directed at the plaintiff, or occur in the presence of a plaintiff of whom the defendant is aware." (*Christensen, supra*, at 903.) In *Christensen*, the Court held that family members of a deceased could not sue for intentional infliction of emotional distress for the intentional mishandling of the decedent's remains. (*Id.* at 877-879, 906.)

In *Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 975, the plaintiff property owners lived adjacent to a landfill where the defendant disposed toxic waste subjected the plaintiffs to exposure of carcinogens, resulting in an enhanced but unqualified risk of developing cancer. The Court concluded that *Christensen* precluded liability for intentional infliction of emotional distress unless the defendant's conduct was directed at the plaintiffs, or undertaken with the knowledge of these specific plaintiffs and consumption of the groundwater, and with knowledge that they would suffer severe emotional distress. (*Id.* at 974, 1002-1003.)

Here, in the operative complaint, Plaintiff alleges that it was directed to Plaintiff because he was in the zone of danger. (Complaint, p. 6.) That is not sufficient for purposes of demonstrating that it was directed to Plaintiff. There are no allegations that Defendant drove drunk to rear end Plaintiff specifically.

Plaintiff is relying on reckless disregard. "The law limits claims of intentional infliction of emotional distress to egregious conduct toward plaintiff proximately caused by defendant.' [Citation.] The only exception to this rule is that recognized when the defendant is aware of, but acts with reckless disregard of the plaintiff and the probability that his conduct will cause severe emotional distress to that plaintiff. [Citations.] Where reckless disregard of the plaintiff's interests is the theory of recovery, the presence of the plaintiff at the time the outrageous conduct occurs is recognized as the element establishing a higher degree of culpability which, in turn, justifies recovery of greater damages by a broader group of plaintiffs than allowed on a negligent infliction of emotional distress theory." (*Christensen, supra*, 54 Cal.3d at 905.)

Here, there are no factual allegations to demonstrate that Defendant was aware that his conduct would cause severe emotional distress. Plaintiff pleads the recklessness of drinking and driving, but no facts demonstrating that the conduct would cause severe emotional distress—just the legal conclusion. SUSTAINED WITH ONE ADDITIONAL, AND LAST, OPPORTUNITY TO AMEND.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2604217	MADRIGAL VS DELACRUZ	MOTION TO STRIKE COMPLAINT OF ENRIQUE MADRIGAL BY AIDEN RAZIEL DELACRUZ

Tentative Ruling: Moot.

Moving Defendant to provide notice pursuant to CCP 1019.5.

Defendant moves to strike punitive damages, contending it does not meet the standard of *Taylor* or *Dawes*.

As the only allegations for punitive damages are pled within the intentional infliction of emotional distress, and not a separate punitive damages attachment, the motion is moot in light of the demurrer.